



File No.: EXP202208588

RESOLUTION OF FILE OF ACTIONS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On July 6, 2022, a complaint was filed with registration number REGAGE22e00028858631, REGAGE22e00029565316, and REGAGE22e00033649143 before the Spanish Agency for Data Protection against XFERA MÓVILES, S.A. with NIF A82528548 (hereinafter, the complained party).

The reasons for the complaint are as follows:

The complainant submits a complaint for receiving commercial calls both on their mobile line ***TELEFONO.1 and on their business phone ***TELEFONO.2 from YOIGO.

They state that, in October 2021, they requested opposition through the Robinson List and were informed that their data had been removed from their records.

On 11/07/2022, they filed a new complaint to report that they received a commercial call on their mobile line ***TELEFONO.1, promoting the services of MÁSMÓVIL.

On 02/08/2022, they filed a new complaint to provide new documentary evidence.

Attached to the complaint is a recording of a commercial call received on their mobile line ***TELEFONO.1 from the calling line ***TELEFONO.3. The date and time are not specified. The salesperson identifies themselves as a worker of MÁSMÓVIL.

Along with the notification, the following is provided:

- A copy of the email sent to MÁSMOVIL requesting opposition to receiving advertising calls.
- A screenshot and recording that proves the receipt of a call on 06/07/2022 from the calling line ***TELEFONO.4.
- A screenshot that proves the receipt of a call on 11/07/2022 from the calling line ***TELEFONO.5.
- A recording of a commercial call received on their mobile line ***TELEFONO.1 from the calling line ***TELEFONO.3 on 02/08/2022, where the salesperson identifies themselves as a worker of MÁSMÓVIL.

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SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on August 9, 2022, as evidenced by the acknowledgment of receipt in the file.

On August 12, 2022, a response was received by this Agency indicating that no results were obtained in the filtering concerning the numbers indicated in this complaint. This means that these numbers have not been included in any commercial action via telephone authorized by XFERA, nor by any of its collaborators.

THIRD: On September 16, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATIVE ACTIONS

As a result of the investigations carried out, the following information has been obtained:

- Through information obtained from the numbering registry on the website of the "Association of Operators for Portability," www.portanet.net, it is verified that, as of the investigation date of this file, the operators of the originating numbers of the calls were:

***TELEFONO.4 LEAST COST ROUTING TELECOM

***TELEFONO.5 LEAST COST ROUTING TELECOM

***TELEFONO.3 LEAST COST ROUTING TELECOM

Regarding the complained number ***TELEFONO.4:

From the response to the requests made, it is concluded that the flow of ownership of the telephone line was:

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LEAST COST ROUTING TELECOM -> LEADDESK, S.L.

LEAST COST confirms the completion of a call to the number ***TELEFONO.1.

A request for information was sent to LEADDESK, S.L., which has expired; a reiteration was also sent via postal mail with acknowledgment of receipt dated 03/02/2023, and no response has been received.

In reference to the claimed number ***TELEFONO.5:

From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

LEAST COST ROUTING TELECOM -> NETVOISS -> COMERCIALIZADORA SYR CENTER 2020, C.A. (Venezuela)

LEAST COST indicates that the call did not occur.

DIGI (the operator of the claimant's number) indicates that there are no recorded calls received on the indicated date.

A request was sent by international certified mail to COMERCIALIZADORA SYR CENTER 2020, C.A., requesting the reason for the calls; there is no acknowledgment of receipt for this.

In reference to the claimed number ***TELEFONO.3:

From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

LEAST COST ROUTING TELECOM -> NETVOISS -> COMERCIALIZADORA SYR CENTER 2020, C.A. (Venezuela)

LEAST COST confirms that the call was made.

A request was sent by international certified mail to COMERCIALIZADORA SYR CENTER 2020, C.A., requesting the reason for the calls; there is no acknowledgment of receipt for this.

FUNDAMENTALS OF LAW

I

Competence

According to the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations will apply to the procedures that the Spanish Agency for Data Protection must

process in exercising the competencies attributed to it by other laws."

II

Final provision sixth, section 2, of the LGTel

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) will come into effect within one year from the publication of this law in the 'Official State Gazette.' Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to object to receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

III

Conclusion

Through the investigations of this Agency, it has not been possible to determine who is responsible for the calls, as no response has been received to the requests sent to the final holders of the different telephone numbers.

Based on the information provided in the previous paragraphs, evidence has been found that substantiates the existence of an infringement; however, it should be noted that several of the calling numbers belong to a company located in Venezuela and that the Spanish Agency for Data Protection does not have jurisdiction over companies located in Venezuela.

Thus, in accordance with the statement made by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present actions.

SECOND: TO NOTIFY this resolution to XFERA MÓVILES, S.A. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

Director of the Spanish Agency for Data Protection

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